RATIO / CASE READING SHEET

Saidov v. Tajikistan

UN Human Rights Committee | CCPR/C/81/D/964/2001 | Tajikistan | 2004

Public-reference AI draft | source quotes and PDF pages verified; interpretation needs review

Ratio reading aid, not an official case summary. Verify against the full judgment before use. No assessment of an individual case's prospects.

Forum and procedural stage

The communication was filed before the UN Human Rights Committee under the Optional Protocol to the ICCPR. It was considered in the Committee’s eighty‑first session (July 2004) as Communication No. 964/2001.

PDF page 1

Material facts

Mr. Gaibullodzhon Ilyasovich Saidov, a civilian, was tried by the Military Chamber of the Supreme Court, sentenced to death, and detained in harsh conditions (small cell, bucket toilet). He received limited legal assistance and minimal contact with his family.

PDF page 4

Issue and actual outcome

The author alleged violations of article 14(2) (presumption of innocence), article 14(3)(b) (right to legal representation), and article 14(3)(d) (publicity of trial). The Committee concluded that these rights were breached and found a violation of article 14, as well as article 6 (fair trial) and related provisions.

PDF page 5

Deciding body's reasoning

The Committee held that state‑directed media prejudice, the accusatory stance of the judge, and the late appointment of counsel undermined the fairness of the proceedings, constituting violations of article 14 paragraphs 2, 3(b), 3(d) and, by extension, article 6.

PDF page 10

General comparison factors and limits

The Committee noted that the case mirrors earlier communications (e.g., Kelly v. Jamaica, Conroy Levy v. Jamaica) where media influence and lack of counsel were deemed violations. It emphasized the need for states to ensure effective remedies under article 2(3)(a) and to publish the Views.

PDF page 10

Source: https://documents.un.org/api/symbol/access?l=en&s=CCPR%2FC%2F81%2FD%2F964%2F2001&t=pdf

Source text SHA-256: c59fb44fe0264af1 | Saved original available in the local case library